

the age of twenty years" were substituted for the words 4 & 5 Geo. 5. "between the ages of twenty and fifty" and the words c. 53. "for a period not exceeding six months" were omitted.

5. This Act may be cited as the Special Constables Act, 1923, and the Special Constables Act, 1914, and this Act may be cited together as the Special Constables Acts, 1914 and 1923, and sections ninety-six, ninety-seven, and ninety-eight of the Burgh Police (Scotland) Act, 1892, the Special Constables (Scotland) Act, 1914, and the Special Constables Act, 1914, and this Act as they apply to Scotland may be cited as the Special Constables (Scotland) Acts, 1892 to 1923. Short title.

CHAPTER 12.

An Act to prohibit the institution and prosecution of legal proceedings in respect of action taken under the Restoration of Order in Ireland Regulations, and to make provision as to claims for compensation by persons affected.

[7th June 1923.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) No action or other legal proceeding whatsoever, whether civil or criminal, shall be instituted in any court of law against any person for, or on account of, or in respect of the issue before the passing of this Act and since the sixth day of December, nineteen hundred and twenty-two, of any order purporting to have been made in pursuance of regulation 14 B. made or purporting to have been made under the Restoration of Order in Ireland Act, 1920, or for, on account of, or in respect of any act done before the passing of this Act for the purpose of carrying any such order into effect; and if any such proceeding has been instituted, whether before or after the passing of this Act, it shall be

Indemnity
for action
taken under
Restoration
of Order
in Ireland
Regulations.

10 & 11
Geo. 5. c. 31.

discharged and made void, subject in the case of a proceeding instituted before the seventeenth day of May, nineteen hundred and twenty-three, to such directions as to costs as the court or a judge thereof may think fit to give:

Provided that any person who, in pursuance of any such order, has been deported to Ireland since the sixth day of December, nineteen hundred and twenty-two, and therein interned shall be entitled within three months after the passing of this Act to claim against such person as may be designated for the purpose by the Treasury compensation for any loss or damage he may have sustained in consequence of such deportation and internment, or of any act done for the purpose of carrying such order into effect, and the amount of such compensation shall be assessed on the principles on which damages would be assessed at common law in a common law action for trespass but without regard to any statutory minimum, or in Scotland for wrongous imprisonment or assault, and awarded by a tribunal consisting of three persons (of whom one shall be a person who holds or has held high judicial office) appointed by the Lord Chief Justice of England, or, in cases of persons deported from Scotland, by the Lord President of the Court of Session, and the decision of such a tribunal shall be final.

If a person so deported and interned dies, the claim for compensation may be made or prosecuted by his personal representative and compensation may be assessed as if he had not died.

11 & 12
Geo. 5. c. 7. (2) The Tribunals of Inquiry (Evidence) Act, 1921, shall apply to such a tribunal as if the tribunal had been established and that Act had been applied thereto in manner provided by that Act: Provided that in any proceedings on such a claim any party shall be entitled to appear by counsel or by a solicitor or law agent.

(3) Any such tribunal shall have power to award and assess such sums by way of costs as they, in their discretion, may think fit.

Short title. 2. This Act may be cited as the Restoration of Order in Ireland (Indemnity) Act, 1923.
